No. WD 77973

IN THE
MISSOURI COURT OF APPEALS
WESTERN DISTRICT

James Pittman
Petitioner-Appellant

v.

Cook Paper Recycling Corp.,
Respondent-Appellee.

Appeal from the Circuit Court of Jackson County, Missouri
Case No. 1316-CV28390

Brief of American Civil Liberties Union of Missouri Foundation and the American Civil Liberties Union Foundation Lesbian, Gay, Bisexual, Transgender & HIV Project as Amici Curiae in Support of Appellant

ANTHONY E. ROTHERT, #44827
GRANT R. DOTY, #60788
ANDREW MCNULTY, #67138
ACLU of Missouri Foundation
454 Whittier Street
St. Louis, Missouri 63108
(314) 652-3114 telephone
(314) 652-3112 facsimile

GILLIAN R. WILCOX, #61278
ACLU of Missouri Foundation
3601 Main Street
Kansas City, Missouri 64111
(816) 470-9933 telephone
(816) 652-3112 facsimile

Attorneys for Amici Curiae

Table of Contents

Jurisdictional Statement 6

Interests of Amici Curiae 6

Statement of Facts 6

Argument 6

Missouri courts are guided by Title VII case law when interpreting the MHRA. 7

Courts have interpreted Title VII to prohibit discrimination against lesbians and gay men. 9

Sex discrimination includes discrimination on the basis of gender stereotypes. 9

1. Impermissible gender stereotypes include the belief that gay men are insufficiently masculine and lesbians insufficiently feminine. 11

2. Impermissible gender stereotypes include the belief that men should only form intimate relationships with women and women should only form intimate relationships with men. 12

3. Discrimination against lesbian and gay employees because of their sex in relation to their intimate partner is sex discrimination. 13

4. Contrary court decisions finding that discrimination against lesbians and gay men is not sex discrimination are outdated and have been abrogated by Price Waterhouse. 14

The EEOC has interpreted Title VII to prohibit discrimination against lesbians and gay men. 15

Pittman's allegations are sufficient to state a claim of sex discrimination for purposes of surviving a motion to dismiss. 17

Conclusion 20

Certificate of Service and Compliance 21

Table of Authorities

Cases

Brady v. Curators of Univ. of Mo., 213 S.W.3d 101 (Mo. App. E.D. 2006) ... 8

Castello v. U.S. Postal Serv., EEOC Request No. 0520110649, 2011 WL 6960810 (Dec. 20, 2011) 16

Centola v. Potter, 183 F. Supp. 2d 403 (D. Mass 2002) 10, 12, 18

Complainant v. Dep't of Homeland Sec., EEOC Appeal No. 0120110576, 2014 WL 4407422 (Aug. 20, 2014) 16

Couch v. Chu, Sec'y, Dep't of Energy, EEOC Appeal 0120131136, 2013 WL 4499198 (Aug. 13, 2013) 16, 18

Culp v. Napolitano, Sec'y, Dep't of Homeland Sec., EEOC Appeal 0720130012, 2013 WL 2146756 (May 7, 2013) 16, 18

Daugherty v. City of Maryland Heights, 231 S.W.3d 814 (Mo. banc 2007) ... 7

DeSantis v. Pacific Tel. & Tel. Co., 608 F.2d 327 (9th Cir.1979) 15

Doe v. City of Belleville, Ill., 119 F.3d 563 (7th Cir.1997) 8, 10, 11, 19

E.E.O.C. v. Grief Bros. Corp., No. 02-CV-468S, 2004 WL 2202641 (W.D.N.Y. Sept. 30, 2004) 11, 18

EEOC v. Boh Bros. Const. Co., L.L.C., 731 F.3d 444 (5th Cir. 2013) 11, 18

Gilliland v. Mo. Athletic Club, 273 S.W.3d 516 (Mo. banc 2009) 8

Glenn v. Brumby, 663 F.3d 1312 (11th Cir. 2011) 15

Hall v. BNSF Ry. Co., No. C13-2160 RSM, 2014 WL 4719007 (W.D. Wash. Sept. 22, 2014) 13

Hammond v. Mun. Corr. Inst., 117 S.W.3d 130 (Mo. App. W.D. 2003) 7

Heller v. Columbia Edgewater Country Club, 195 F. Supp. 2d 1212 (D. Or. 2002) 12, 13, 18, 19

Higgins v. New Balance Athletic Shoe, Inc., 194 F.3d 252 (1st Cir. 1999) 11

Ianetta v. Putnam Invs., Inc., 142 F. Supp. 2d 131 (D. Mass. 2002) 12

In re Levenson, 537 F.3d 925 (9th Cir. 2009) 13

Jernigan v. Crane, No. 4:13-CV-00410 KGB, 2014 WL 6685391 (E.D. Ark. Nov. 25, 2014) 14

Kitchen v. Herbert, 961 F. Supp. 2d 1181 (D. Utah 2013) 14

Koren v. Ohio Bell Telephone Co., 894 F. Supp. 2d 1032 (N.D. Ohio 2012) . 12, 18

L.A. Dept. of Water & Power v. Manhart, 435 U.S. 702 (1978) 10

Latta v. Otter, 771 F.3d 456 (9th Cir. 2014) 13

Lawson v. Kelly, No. 14-0622-CV-W-ODS, 2014 WL 5810215 (W.D. Mo. Nov. 7, 2014) 6, 14

Lewis v. Heartland Inns of Am., L.L.C., 591 F.3d 1033 (8th Cir. 2010) 11, 14

Lynch v. Lynch, 260 S.W.3d 834 (Mo. banc 2008) 18

Missourians for Honest Elections v. Mo. Elections Comm'n, 536 S.W.2d 766 (Mo. App. 1976) 8

Mo. Nat'l Educ. Ass'n v. Mo. State Bd. of Educ., 34 S.W.3d 266 (Mo. Ct. App. 2000) 8

Newport News Shipbuilding & Dry Dock Co. v. EEOC, 462 U.S. 669 (1983) 8

Nichols v. Azteca Rest. Enters., 256 F.3d 864 (9th Cir. 2001) 11, 15

Oncale v. Sundowner Offshore Oil Servs., Inc., 523 U.S. 75 (1989) 8, 9, 15

Pension Benefit Guarantee Corp. v. LTV Corp., 496 U.S. 633 (1990) 9

Perry v. Schwarzenegger, 704 F. Supp. 2d 921 (N.D. Cal. 2010) 14

Pipe Fabricators, Inc. v. Dir. of Revenue, 654 S.W.2d 74 (Mo. banc 1983) .. 8

Price Waterhouse v. Hopkins, 490 U.S. 228 (1989) 9, 10, 14, 15

Prowel v. Wise Bus. Forums, Inc., 579 F.3d 285 (3d Cir. 2009) 11

Rosenbrahn v. Daugaard, No. 4:14-CV-04081-KES, 2014 WL 6386903 (D.S.D. Nov. 14, 2014) 14

Schmeddling v. Tnemec Co. Inc., 187 F.3d 862 (8th Cir. 1999) 18

Smith v. City of Salem, Ohio, 378 F.3d 566 (6th Cir. 2004) 10, 11, 15, 19

Sommers v. Budget Marketing, 667 F.2d 748 (8th Cir. 1982) 15

State ex rel. Wash. Univ. v. Richardson, 396 S.W.3d 387 (Mo. Ct. App. 2013) 8

Terveer v. Billington, 34 F.Supp.3d 100 (D.D.C. 2014) 18

Ulane v. Eastern Airlines, Inc., 742 F.2d 1081 (7th Cir. 1984) 15

Veretto v. Donahoe, Postmaster Gen., U.S. Postal Serv., EEOC Appeal 0120110873, 2011 WL 2663401 (July 1, 2011) 16

Williamson v. A.G. Edwards & Sons, Inc., 876 F.2d 69 (8th Cir. 1989) 15

Statutes

42 U.S.C. § 2000e-2(a)(1) 7, 9

RSMo. § 213.055.1(1) 7, 9

Other Authorities

American Psychological Association, "Answers to Your Questions For a Better Understanding of Sexual Orientation & Homosexuality" 10

EEOC, "Gender Stereotyping: Preventing Employment Discrimination of Lesbian, Gay, Bisexual, or Transgender Workers" 17

EEOC, "Processing Complaints of Discrimination by Lesbian, Gay, Bisexual, and Transgender (LGBT) Federal Employees" 17

EEOC, Memorandum: Update on Intake and Charge Processing of Title VII Claims of Sex Discrimination Related to LGBT Status (Feb. 3, 2015) 17

RICHARD A. POSNER, SEX AND REASON (1992) 10

U.S. EEOC Strategic Enforcement Plan for FY 2013-2016 16

Jurisdictional Statement

Amicus adopts the jurisdictional statement as set forth in Appellant's brief.

Interests of Amici Curiae

The American Civil Liberties Union (ACLU) is a nonprofit, nonpartisan membership organization founded in 1920 to protect and advance civil liberties throughout the United States. The ACLU has more than 500,000 members nationwide. The ACLU of Missouri Foundation is an affiliate of the national ACLU. The ACLU of Missouri has more than 4,500 members in the state.

The ACLU and the ACLU of Missouri strive to strengthen and defend employment protections and ensure that lesbian, gay, bisexual, and transgender people have equal opportunity to participate fully in civil society. The ACLU has been involved in numerous cases seeking to ensure that the rights of lesbian, gay, bisexual, and transgender people are protected, including: *Muhammad v. Caterpillar, Inc.*, 767 F.3d 694 (7th Cir. 2014); *Finkle v. Howard Cnty., Md.*, 12 F. Supp. 3d 780 (D. Md. 2014); *Lawson v. Kelly*, No. 14-0622-CV-W-ODS, 2014 WL 5810215 (W.D. Mo. Nov. 7, 2014); *Schroer v. Billington*, 525 F. Supp. 2d 58 (D.C. 2007); *Barrier v. Vasterling*, No. 1416-CV03892, 2014 WL 4966467 (Jackson Cnty. Cir. Ct. Oct. 3, 2014), as amended, 2014 WL 5469888 (Oct. 27, 2014).

Statement of Facts

Amici adopt the statement of facts as set forth in Appellant's brief.

Argument

This Court should protect all employees under the Missouri Human Rights Act (MHRA) from unlawful sex discrimination,[1] including those who are gay or lesbian, such

[1] All statutory references are to Missouri Revised Statutes (2000), as updated, unless otherwise noted.

as Petitioner-Appellant James Pittman. Pittman has alleged that he suffered workplace harassment, including being called a "cocksucker" and subjected to other comments of a sexual nature, and to firing, because he is gay and was in a relationship with a man. (LF 5).[2] The circuit court dismissed Pittman's petition, finding that Pittman failed to "allege discrimination on the basis of "sex"—the fact that he was a man, being treated different [sic] than a woman," but rather "alleged he was discriminated against because he was a homosexual." (LF 29). The court further rejected Pittman's claim that he was subjected to illegal sex stereotyping, finding that "[i]t is not the role of the Court to create new causes of action." (LF 30).

Interpreted in the light most favorable to Pittman, his allegations make out a case of sex discrimination. Missouri courts are guided by Title VII case law when interpreting the MHRA, and federal courts and the EEOC have concluded that discrimination against lesbians and gay men may constitute sex discrimination. Applying the reasoning of those decisions to Pittman's petition shows the circuit court's error in dismissing it. Accordingly, this Court should reverse and remand this case for further proceedings.

Missouri courts are guided by Title VII case law when interpreting the MHRA.

The MHRA, like Title VII of the Civil Rights Act of 1964, prohibits sex discrimination.[3] "In deciding a case under the MHRA, appellate courts are guided by both Missouri law and federal employment discrimination case[]law that is consistent with Missouri law." *Daugherty v. City of Maryland Heights*, 231 S.W.3d 814, 818 (Mo. banc 2007); *see also Hammond v. Mun. Corr. Inst.*, 117 S.W.3d 130, 136 (Mo. App. W.D.

---

[2] All record citations are to the joint legal file submitted by the parties.

[3] MHRA states that "[i]t shall be an unlawful employment practice … [f]or an employer . . . to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, national origin, sex, ancestry, age or disability[.]" § 213.055.1(1). Title VII of the Civil Rights Act of 1964 similarly states that "[i]t shall be an unlawful employment practice for an employer . . . to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin[.]" 42 U.S.C. § 2000e-2(a)(1).

2003). "Missouri Courts have adopted federal Title VII case law when interpreting analogous discrimination statutes in the Missouri Human Rights Act." *Brady v. Curators of Univ. of Mo.*, 213 S.W.3d 101, 113 (Mo. App. E.D. 2006). The MHRA and Title VII use identical language to forbid sex discrimination, so this Court should interpret the MHRA's sex discrimination prohibition in accordance with federal Title VII precedent. Relying on federal precedent is particularly important here, where the question of whether discrimination against lesbians and gay men can constitute sex discrimination has not yet been decided by a Missouri appellate court.[4] "[T]he MHRA is a remedial statute, which [this Court] construe[s] broadly." *State ex rel. Wash. Univ. v. Richardson*, 396 S.W.3d 387, 396 (Mo. Ct. App. 2013). This Court should therefore endorse the reasoning of the federal and EEOC decisions recognizing that workplace discrimination against lesbians and gay men may constitute illegal sex discrimination under the MHRA.

It is inconsequential that the legislative history surrounding the passage of the MHRA fails to reveal a particularized intent to proscribe discrimination against lesbians, gay men, or others who fail to live up to an employer's gender stereotypes, because "a court must enforce the law according to its terms, not by what may have been intended by the enactment." *Mo. Nat'l Educ. Ass'n v. Mo. State Bd. of Educ.*, 34 S.W.3d 266, 279 (Mo. Ct. App. 2000) (citing *Pipe Fabricators, Inc. v. Dir. of Revenue*, 654 S.W.2d 74, 76 (Mo. banc 1983)); *see also Missourians for Honest Elections v. Mo. Elections Comm'n*, 536 S.W.2d 766, 775 (Mo. App. 1976) ("While the rules of statutory construction are well known, in ascertaining the meaning of a law, we must look to the express language of the Act irrespective of what was intended."); *cf. Oncale v. Sundowner Offshore Oil Servs., Inc.*, 523 U.S. 75, 79 (1989) (noting that Title VII coverage is not limited to specific forms of discrimination contemplated by Congress); *Doe v. City of Belleville, Ill.*, 119 F.3d 563, 572 (7th Cir.1997) (noting that Title VII's coverage is not limited "'to the specific problem that motivated its enactment'" (quoting *Newport News Shipbuilding &*

---

[4] This Court has already concluded that "the Missouri Human Rights Act, like Title VII, prohibits sexual harassment regardless of the sex of the claimant or the harasser." *Gilliland v. Mo. Athletic Club*, 273 S.W.3d 516, 521 n.8 (Mo. banc 2009).

Dry Dock Co. v. EEOC, 462 U.S. 669, 679 (1983))), *vacated and remanded for further consideration in light of Oncale v. Sundowner Offshore Services*, 523 U.S. 75 (1998).

Similarly, the failure of subsequent efforts to amend the MHRA to explicitly prohibit discrimination based on a person's sexual orientation is not a valid reason for courts to artificially constrict the scope of the MHRA's existing prohibition on sex discrimination to avoid protecting lesbians and gay men from illegal gender stereotyping. *Cf. Pension Benefit Guarantee Corp. v. LTV Corp.*, 496 U.S. 633, 650 (1990) (explaining that "subsequent legislative history is a hazardous basis for inferring the intent of an earlier Congress" and that "Congressional inaction lacks persuasive significance because several equally tenable inferences may be drawn from such inaction, including the inference that the existing legislation already incorporated the offered change").

Courts have interpreted Title VII to prohibit discrimination against lesbians and gay men.

Both Title VII and the MHRA clearly and unambiguously forbid an employer to discriminate against its employees "because of such individual's . . . sex[.]" 42 U.S.C. § 2000e-2(a)(1); § 213.055.1(1). The overwhelming majority of federal courts to consider the issue have concluded that intentional discrimination against lesbians and gay men can constitute discrimination because of sex when it is founded on gender stereotypes. Other courts have concluded that discrimination against lesbians and gay men constitutes sex discrimination because it is motivated by the sex of the employee in relation to his or her spouse or partner.

Sex discrimination includes discrimination on the basis of gender stereotypes.

In *Price Waterhouse v. Hopkins*, the United States Supreme Court found that "we are beyond the day when an employer could evaluate employees by assuming or insisting that they matched the stereotype associated with their group, for '[i]n forbidding employers to discriminate against individuals because of their sex, Congress intended to strike at the entire spectrum of disparate treatment of men and women resulting from sex

stereotypes.'" 490 U.S. 228, 251 (1989) (quoting *L.A. Dept. of Water & Power v. Manhart*, 435 U.S. 702, 707 n.13 (1978)). Accordingly, "an employer who acts on the basis of a belief that a woman cannot be aggressive, or that she must not be, has acted on the basis of gender." *Id.* at 250. *Price Waterhouse* therefore clarified that sex discrimination comprises not only disparate treatment of women as compared to men, or vice versa, but also gender-based discrimination.[5]

Sexual orientation and gender are closely related because a person's sexual orientation is determined based on his or her emotional, romantic, and sexual attraction to persons of the same or different sex.[6] Moreover, the abuse, harassment, and discrimination that gay employees are subjected to is often directly related to the gender-based stereotypes and preferences of their employers. These stereotypes and preferences can motivate the disparate treatment of lesbians and gay men because they form intimate relationships with persons of the same sex, *see, e.g.*, *Centola v. Potter*, 183 F. Supp. 2d 403, 410 (D. Mass 2002) ("[S]tereotypes about homosexuality are directly related to our stereotypes about the proper roles of men and women."), and may otherwise be perceived as appearing or behaving in ways that violate an employer's gender-based preferences (e.g., the stereotype that gay men are effeminate while lesbians are masculine). *E.g.*, *Doe*, 119 F.3d at 593 n.27 ("[A] homophobic epithet like 'fag,' for example, may be as much of a disparagement of a man's perceived effeminate qualities as it is of his perceived sexual orientation.").

---

[5] "[T]he term 'gender' is one 'borrowed from grammar to designate the sexes as viewed as social rather than biological classes.'" *Smith v. City of Salem, Ohio*, 378 F.3d 566, 572 (6th Cir. 2004) (quoting RICHARD A. POSNER, SEX AND REASON, 24-25 (1992)). Thus, "[t]he Supreme Court made clear that in the context of Title VII, discrimination because of 'sex' includes gender discrimination: 'In the context of sex stereotyping, an employer who acts on the basis of a belief that a woman cannot be aggressive, or that she must not be, has acted on the basis of gender.'" *Id.* (quoting *Price Waterhouse v. Hopkins*, 490 U.S. 228, 250 (1989)).

[6] *See* American Psychological Association, "Answers to Your Questions For a Better Understanding of Sexual Orientation & Homosexuality," *available at* http://www.apa.org/topics/lgbt/orientation.aspx.

1. Impermissible gender stereotypes include the belief that gay men are insufficiently masculine and lesbians insufficiently feminine.

Sex discrimination claims by employees whose appearance or behavior failed to comport with their employer's gender stereotypes have been widely recognized by federal courts. For example, in *Lewis v. Heartland Inns of America, L.L.C.*, 591 F.3d 1033, 1042 (8th Cir. 2010), the Eighth Circuit held that evidence an employer did not like a female employee's "'tomboyish' appearance" and "Ellen DeGeneres kind of look" made out case of sex discrimination. *See also EEOC v. Boh Bros. Const. Co., L.L.C.*, 731 F.3d 444, 457-59 (5th Cir. 2013) (finding that "sex-based epithets in the workplace such as 'fa—ot,' 'pu—y,' and 'princess,'" could be viewed by a jury "as an attempt to denigrate [the employee] because—at least in [his employer's] view—[he] fell outside of [his employer's] manly-man stereotype"); *Higgins v. New Balance Athletic Shoe, Inc.*, 194 F.3d 252, 261 n.4 (1st Cir. 1999) (finding that "a man can ground a [Title VII] claim on evidence that other men discriminated against him because he did not meet stereotyped expectations of masculinity"); *Prowel v. Wise Bus. Forums, Inc.*, 579 F.3d 285, 287 (3d Cir. 2009) (finding that gay man harassed for speaking with a high voice and walking and sitting in an effeminate manner pled a cognizable claim of gender stereotyping); *Smith v. City of Salem, Ohio*, 378 F.3d 566, 574 (6th Cir. 2004) (noting that "employers who discriminate against men because they . . . act femininely, are also engaging in sex discrimination, because the discrimination would not occur but for the victim's sex"); *Doe*, 119 F.3d at 580-81 (finding that "a man who is harassed because his voice is soft, his physique is slight, his hair long, or because in some other respect he exhibits his masculinity in a way that does not meet his coworkers' idea of how men are to appear and behave, is harassed 'because of his sex'"); *Nichols v. Azteca Rest. Enters.*, 256 F.3d 864, 874-75 (9th Cir. 2001) (finding that harassment of a gay employee "based upon the perception that [he] is effeminate" is harassment because of sex); *E.E.O.C. v. Grief Bros. Corp.*, No. 02-CV-468S, 2004 WL 2202641, at *15 (W.D.N.Y. Sept. 30, 2004) (finding that harassment because employee wore an earring, refused to take part in discussions regarding sex with women and "was subjected to taunts disparaging his

masculinity, such as 'fag,' 'fudgepacker,' 'homo' and 'queer'" sufficient to support "gender stereotype theory of sex discrimination"); *Ianetta v. Putnam Invs., Inc.*, 142 F. Supp. 2d 131, 133-34 (D. Mass. 2002) (finding that an allegation that supervisor called employee "faggot" and otherwise discriminated against him on the basis of gender stereotypes made out case of sex discrimination).

2. Impermissible gender stereotypes include the belief that men should only form intimate relationships with women and women should only form intimate relationships with men.

Lesbians and gay men are often victims of gender-based discrimination directed at them because they form intimate relationships with persons of the same sex. A male employee who is gay or perceived to be gay, for example, whether effeminate or not, can allege sex discrimination "due to his failure to conform with sexual stereotypes about what 'real' men do or don't do" because in the minds of some employers "'real men don't date men.'" *Centola*, 183 F. Supp. 2d at 410.

Koren v. Ohio Bell Telephone Co., 894 F. Supp. 2d 1032, 1037-38 (N.D. Ohio 2012), is an example of such a case. Jason Koren alleged that, after marrying a man and taking his husband's last name—"a 'traditionally' feminine practice"—his superior showed ill will towards him by refusing to use his married name, which encouraged his superior to reject Koren's requests for excused absences, resulting in his termination. *Id.* The district court found this evidence sufficient to make out a case of gender stereotyping and denied the employer summary judgment. *Id.* at 1038. Similarly, in *Heller v. Columbia Edgewater Country Club*, 195 F. Supp. 2d 1212, 1217 (D. Or. 2002), a lesbian cook alleged that she was subjected to severe harassment and termination after her supervisor "became increasingly obsessed with the fact that Heller was having an intimate relationship with a woman." The harassment included insulting and abusive comments related to her sex life and personal relationship. *Id.* at 1217-18. The district court found the evidence sufficient to support a claim under Title VII, since it showed that Heller failed to conform to her employer's "stereotype of how a woman ought to

behave," since "Heller is attracted to and dates other women, whereas [her employer] believes that a woman should be attracted to and date only men." *Id.* at 1224.

3. Discrimination against lesbian and gay employees because of their sex in relation to their intimate partner is sex discrimination.

Sex discrimination may also be shown where an employer subjects an employee to disparate treatment because of her sex in relation to her spouse or partner. In *Heller*, for example, the court described an alternative method to gender stereotyping through which Heller could prove she was subjected to sex discrimination. *Heller*, 195 F. Supp. 2d at 1217-18. If Heller proved that her employer "would not have acted as she (allegedly) did if [Heller] were a man dating a woman, instead of a woman dating a woman," then Heller would have shown that her employer "discriminated against [Heller] because of her gender." *Id.* at 1223.

In *Hall v. BNSF Ry. Co.*, No. C13-2160 RSM, 2014 WL 4719007, at *3-5 (W.D. Wash. Sept. 22, 2014), the district court reached a similar conclusion in a case where a gay man's employer denied him spousal health insurance benefits for his male spouse. The district court rejected the employer's motion to dismiss, finding that the employee had sufficiently "allege[d] disparate treatment based on his sex, not … sexual orientation" in that the employee "(as a male who married a male) was treated differently in comparison to his female coworkers who also married males." *Id.* at *3; *see also In re Levenson*, 537 F.3d 925, 929 (9th Cir. 2009) (reaching a similar conclusion in a dispute that involved a federal public defender's same-sex partner being denied benefits).

In a related context, several courts have recognized that bans on marriage for same-sex couples discriminate on the basis of sex because the plaintiffs' "rights under the states' bans on same-sex marriage are wholly determined by their sex," since "[b]ut for their gender, plaintiffs would be able to marry the partners of their choice[,]" and because the bans "implicitly and explicitly, draw on 'archaic and stereotypic notions' about the purportedly distinctive roles and abilities of men and women." *Latta v. Otter*, 771 F.3d 456, 480, 485 (9th Cir. 2014) (Berzon, J., concurring). Significantly, this analysis has

already been endorsed by three federal district courts within the Eighth Circuit. *See Jernigan v. Crane*, No. 4:13-CV-00410 KGB, 2014 WL 6685391, at *23 (E.D. Ark. Nov. 25, 2014); *Rosenbrahn v. Daugaard*, No. 4:14-CV-04081-KES, 2014 WL 6386903, at *10 (D.S.D. Nov. 14, 2014); *Lawson v. Kelly*, No. 14-0622-CV-W-ODS, 2014 WL 5810215, at *8 (W.D. Mo. Nov. 7, 2014); *see also Kitchen v. Herbert*, 961 F. Supp. 2d 1181, 1206 (D. Utah 2013), *aff'd on other grounds*, 755 F.3d 1193 (10th Cir. 2014); *Perry v. Schwarzenegger*, 704 F. Supp. 2d 921, 996 (N.D. Cal. 2010), *appeal dismissed sub nom.*, *Perry v. Brown*, 725 F.3d 1140 (9th Cir. 2013).

In the context of both employment discrimination and marriage equality, sex discrimination occurs when an individual is subjected to discrimination because of their sex in relationship to the sex of their partner. In the context of employment, such discrimination violates the MHRA.

4. Contrary court decisions finding that discrimination against lesbians and gay men is not sex discrimination are outdated and have been abrogated by Price Waterhouse.

The circuit court's rejection of Pittman's allegations of sex discrimination because Pittman failed to assert "that he was a man, being treated different [sic] than a woman," (LF 29), not only fails to credit the disparate treatment Pittman asserted, but it is also founded on a narrow and discredited interpretation of sex discrimination.

The Eighth Circuit's decision in *Lewis* shows the error in the circuit court's analysis. The *Lewis* court reversed a federal district court's dismissal of a Title VII case brought by a woman who was fired because her slightly masculine "tomboyish" appearance, which her immediate boss "characterized … as 'an Ellen DeGeneres kind of look,'" failed to fulfill the Operations Managers' requirement that female front desk employees have a stereotypically feminine appearance. 591 F.3d at 1036. The court of appeals found the evidence sufficient to make out a case of gender stereotyping under *Price Waterhouse*. *Id.* at 1041. It also found that the district court's dismissal of the case because of its "mistaken view that a Title VII plaintiff must produce evidence that she

was treated differently than similarly situated males," was error. *Id.* at 1039. It reasoned that "*Oncale* illustrates how an employee may prove an adverse employment action because of sex without evidence that employees of the opposite sex were treated differently[,]" finding that "'comparative evidence about how [an] alleged harasser treated members of both sexes" is only one 'evidentiary route' to prove discrimination." *Id.* at 1040 (quoting *Oncale*, 523 U.S. at 80-81).

And, while it is true that earlier decisions found that Title VII's prohibition on sex discrimination only covered discrimination against "women because they are women and men because they are men," *Ulane v. Eastern Airlines, Inc.*, 742 F.2d 1081, 1085 (7th Cir. 1984); *Sommers v. Budget Marketing*, 667 F.2d 748, 750 (8th Cir. 1982) (limiting interpretation of "sex" to "biological sex"), and that discrimination on the basis of sexual orientation and gender stereotypes was, therefore, unaddressed by Title VII, *see, e.g.*, *DeSantis v. Pacific Tel. & Tel. Co.*, 608 F.2d 327, 329-30, 332 (9th Cir.1979) (finding that Title VII fails to prohibit discrimination on the basis of sexual orientation or "discrimination because of effeminacy"), *abrogated by Nichols*, 256 F.3d at 875; *Ulane*, 742 F.2d at 1084 (finding no Title VII coverage for "homosexuals"); *Williamson v. A.G. Edwards & Sons, Inc.*, 876 F.2d 69, 70 (8th Cir. 1989) (same) (citing *Sommers* and *DeSantis*), *Price Waterhouse*, *Oncale*, and many other federal court decisions have left the continuing authority of these older decisions in serious doubt. *See, e.g.*, *Glenn v. Brumby*, 663 F.3d 1312, 1318 n.5 (11th Cir. 2011) (stating that "since the decision in *Price Waterhouse*, federal courts have recognized with near-total unanimity" that the approach in cases such as *Ulane* and *Sommers* "'has been eviscerated' by *Price Waterhouse*'s holding" (quoting *Smith*, 378 F.3d at 573)).

The EEOC has interpreted Title VII to prohibit discrimination against lesbians and gay men.

The EEOC also recognizes sex discrimination claims based upon an employee's perceived sexual orientation or intimate relationship with someone of the same sex. In its federal sector rulings, it has concluded that even though "Title VII's prohibition of

discrimination does not explicitly include sexual orientation … sex discrimination claims may intersect with claims of sexual orientation discrimination." *Complainant v. Dep't of Homeland Sec.*, EEOC Appeal No. 0120110576, 2014 WL 4407422, at *7 (Aug. 20, 2014). As a result, a "claim of harassment based on [a male employee's] 'perceived sexual orientation' is a claim of discrimination based on the perception that [the employee] does not conform to gender stereotypes of masculinity, and therefore states a viable claim under title VII's sex discrimination prohibition." *Couch v. Chu, Sec'y, Dep't of Energy*, EEOC Appeal 0120131136, 2013 WL 4499198, at *8 (Aug. 13, 2013); *accord Culp v. Napolitano, Sec'y, Dep't of Homeland Sec.*, EEOC Appeal 0720130012, 2013 WL 2146756, at *4 (May 7, 2013) (finding plaintiff's claim that her "supervisor was motivated by his attitudes about stereotypes that women should only have relationships with men, and that two lesbians seen together created an 'improper perception' that goes against that gender stereotype" sufficiently stated a claim of sex discrimination); *Castello v. U.S. Postal Serv.*, EEOC Request No. 0520110649, 2011 WL 6960810, at *2-3 (Dec. 20, 2011) (finding gender stereotyping based in part on evidence of offensive and derogatory comments regarding employee's sexual relationships with women); *Veretto v. Donahoe, Postmaster Gen., U.S. Postal Serv.*, EEOC Appeal 0120110873, 2011 WL 2663401, at *3 (July 1, 2011) (finding plaintiff's claim "that he was subjected to a hostile work environment because [his employer] learned that he was marrying a man" sufficiently stated a claim for sex discrimination because it alleged the employer's "actions were motivated by his attitudes about stereotypical gender roles in marriage").

The EEOC has also been engaging in education of employees and employers regarding Title VII's coverage for discrimination against lesbian, gay, bisexual and transgender employees. The EEOC's current Strategic Enforcement Plan identifies "coverage of lesbian, gay, bisexual and transgender individuals under Title VII's sex discrimination provisions" as a top EEOC enforcement priority. *See* U.S. EEOC Strategic Enforcement Plan for FY 2013-2016, *available at* http://www.eeoc.gov/eeoc/plan/sep.cfm, at section III.B.3. The agency's publication on its website of its federal sector

rulings serves to educate employers and employees regarding Title VII's coverage of certain claims of sexual orientation discrimination. *See* EEOC, "Processing Complaints of Discrimination by Lesbian, Gay, Bisexual, and Transgender (LGBT) Federal Employees," *available at* http://www.eeoc.gov/federal/directives/lgbt complaint processing.cfm. Finally, the EEOC has reached out specifically to encourage lesbian, gay, bisexual and transgender victims of employment discrimination to report it to the EEOC, because of its coverage under Title VII. *See* EEOC, "Gender Stereotyping: Preventing Employment Discrimination of Lesbian, Gay, Bisexual, or Transgender Workers," *available at* http://www.eeoc.gov/eeoc/publications/brochure-gender_stereotyping.cfm; *see also* EEOC, Memorandum: Update on Intake and Charge Processing of Title VII Claims of Sex Discrimination Related to LGBT Status (Feb. 3, 2015), *available at* https://s3.amazonaws.com/s3.documentcloud.org/documents/1670449/eeoc-lgbt-field-guidance.pdf (advising that complaints of discrimination based on transgender status, gender identity, or sexual orientation "should be accepted under Title VII and investigated as claims of sex discrimination in light of Commission precedent").

As the federal agency with primary enforcement authority of Title VII, this Court should credit the EEOC's conclusion that "Title VII protects gay, lesbian and bisexual individuals against sex discrimination, which includes adverse actions taken because of a person's failure to conform to sex or gender stereotypes," EEOC, "Gender Stereotyping: Preventing Employment Discrimination of Lesbian, Gay, Bisexual, or Transgender Workers," *available at* http://www.eeoc.gov/eeoc/publications/brochure-gender_stereotyping.cfm, when evaluating the question of whether the MHRA protects lesbians and gay men from impermissible sex discrimination.

Pittman's allegations are sufficient to state a claim of sex discrimination for purposes of surviving a motion to dismiss.

The circuit erred in dismissing Pittman's petition because he alleged disparate treatment and harassment based on his relationship with a man. (LF 5) ("Defendant treated Plaintiff more harshly than a male who was getting a divorce from his female

wife."). Liberally construed, Pittman's petition sufficiently alleged sex discrimination. *See Lynch v. Lynch*, 260 S.W.3d 834, 836 (Mo. banc 2008) (noting that facts in a petition are "construed liberally in favor of the plaintiffs," when ruling on a motion to dismiss). As the discussion in sections II and III, *supra*, demonstrates, several courts and the EEOC have recognized that disparate workplace treatment because of a person's same-sex relationship may constitute sex discrimination—either by showing the employer would have acted differently had the employee been a different sex, *Heller*, 195 F. Supp. 2d at 1223, or by showing that the employer's adverse treatment was motivated by the employee's failure to behave according to the employer's beliefs regarding the "proper" roles of men or women. *See, e.g.*, *Heller*, 195 F. Supp. 2d at 1224; *Koren*, 894 F. Supp. 2d at 1037-38; *Culp*, 2013 WL 2146756, at *4.

Pittman's additional allegation that Defendant's President called him "cocksucker" and "directed other comments of a sexual nature, discriminatory to a male homosexual, including asking him if he had AIDS[,]" (LF 5), evidence assumptions and stereotypes regarding a gay man and his failure to comport with gender stereotypes regarding how a man should behave. Similar conduct has been found to constitute sex discrimination by federal courts and the EEOC. *See, e.g.*, *Boh Bros. Const.*, 731 F.3d at 457-59; *Grief Bros. Corp.*, 2004 WL 2202641, at *15; *Couch*, 2013 WL 4499198, at *8 (finding that the employer's constant references to employee as "fag" "faggot" and "gay," among other derogatory comments, made out viable sex discrimination claim).

Pittman also alleged a hostile environment based on his sexual orientation. (LF 6). This suggests he may have been labeled as gay in "an effort to debase [the employee's] masculinity," which is a form of sex discrimination. *Schmeddling v. Tnemec Co. Inc.*, 187 F.3d 862, 865 (8th Cir. 1999) (finding that harassment, including rumors falsely labeling employee as gay, constituted actionable sex discrimination); *see also Terveer v. Billington*, 34 F.Supp.3d 100, 116 (D.D.C. 2014) (finding that a gay employee who alleged that his "sexual orientation is not consistent with the [employer's] perception of acceptable gender roles" stated a claim of sex discrimination); *Centola*, 183 F. Supp. 2d

at 410 (finding that harassment of postal worker by "mocking his masculinity, portraying him as effeminate, and implying that he was a homosexual" constituted sex discrimination).

Having sufficiently alleged a case of gender stereotyping, Pittman was not required to allege disparate treatment as compared to female employees, because the allegation of "gender stereotyping establishes the link to the plaintiff's sex that Title VII requires." *Doe* 119 F.3d at 581; *see also* section II.C., *supra*.

The fact that an employee, such as Pittman, is lesbian or gay does not license an employer to engage in gender stereotyping. "Sex stereotyping based on a person's gender non-conforming behavior is impermissible discrimination, irrespective of the cause of that behavior." *Smith*, 378 F.3d at 575. In *Smith*, the Sixth Circuit reversed the district court's dismissal of a transgender plaintiff's claims of gender stereotyping, because the district court incorrectly viewed those allegations as confirmation of the plaintiff's status as transgender, which "precluded Smith from Title VII protection[,]" instead of considering "Smith's well-pleaded claims concerning his contra-gender behavior[.]" *Id.* at 574. In reversing the district court's decision, the Sixth Circuit concluded that "a label, such as 'transsexual,' is not fatal to a sex discrimination claim where the victim has suffered discrimination because of his or her gender non-conformity." *Id.* at 575.

Similarly, labeling an employee's disparate treatment on the basis of gender stereotyping as sexual orientation discrimination is an improper ground for dismissing a claim of sex discrimination. *Cf. Heller*, 195 F. Supp. 2d at 1222 ("Nothing in Title VII suggests that Congress intended to confine the benefits of that statute to heterosexual employees alone."). As discussed, *supra*, disparate treatment of lesbians and gay men may constitute both sex and sexual orientation discrimination. To find, in contrast, that sex discrimination suffered by employees is somehow different or permissible simply because the victim of the discrimination is a lesbian or gay man undermines the protections provided for in the MHRA and Title VII—laws that were enacted to protect all employees from illegal sex discrimination.

Conclusion

James Pittman alleged that he was harassed with derogatory comments of a sexual nature because he is gay and treated more harshly during a break-up with his partner than coworkers in different-sex relationships. His allegations are sufficient to raise a claim of sex discrimination, because they indicate that the discrimination Pittman experienced resulted from his sex in relation to his former partner as well as his failure to act consistently with his employer's beliefs regarding how a man should behave. This Court should reverse the trial court's dismissal of Pittman's employment discrimination claims and remand this case to the circuit court for further proceedings.

Respectfully submitted,

/s/ Anthony E. Rothert
Anthony E. Rothert, #44827
Grant R. Doty, #60788
Andrew McNulty, #67138
ACLU of Missouri Foundation
454 Whittier Street
St. Louis, Missouri 63108
(314) 652-3114
arothert@aclu-mo.org
gdoty@aclu-mo.org
amcnulty@aclu-mo.org

Gillian R. Wilcox, #61278
ACLU of Missouri Foundation
3601 Main Street
Kansas City, Missouri 64111
(816) 470-9933
gwilcox@aclu-mo.org

Attorneys for Amici Curiae

Certificate of Service and Compliance

The undersigned hereby certifies that on February 27, 2015, the foregoing amici brief was filed electronically and served automatically on counsel for all parties.

The undersigned further certifies that pursuant to Rule 84.06(c), this brief: (1) contains the information required by Rule 55.03; (2) complies with the limitations in Rule 84.06 and Local Rule XLI; (3) contains 5,027 words, as determined using the word-count feature of Microsoft Office Word. Finally, the undersigned certifies that electronically filed brief was scanned and found to be virus-free.

/s/ Anthony E. Rothert